

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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DANIEL McGEE,

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE WARREN
ROHAN, Shield No. 2378, DETECTIVE STEVE
LAFORTUNE, DETECTIVE BRIAN CHICHOTSKY,
DETECTIVE JAMES ELLERBEE, DETECTIVE
RAHMAN WALIUR, Shield No. 6428, LIEUTENANT
LAWRENCE HAMMOND, and POLICE OFFICERS
JOHN DOES #1-4 (names and number of whom are
unknown at present), and other unidentified members of
the New York City Police Department,

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
December 27, 2015

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
Detective Warren Rohan, Shield No. 2378, Brooklyn North Narcotics
Detective Steve LaFortune, Brooklyn North Narcotics
Detective Brian Chichotsky, Brooklyn North Narcotics
Detective James Ellerbee, Brooklyn North Narcotics
Detective Rahman Waliur, Shield No. 6428, Brooklyn North Narcotics
Lieutenant Lawrence Hammond, Brooklyn North Narcotics

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff DANIEL McGEE, by his attorneys, Jacobs & Hazan, LLP, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On December 27, 2012, at approximately 11:00 a.m. plaintiff Daniel McGee was lawfully present inside the home, located at 244 Saint Marks Avenue, Brooklyn, New York of an elderly woman whom he knew for many years. Plaintiff had just run some errands for the woman and was visiting her at her home to provide her with company and to ensure she was healthy and cared for, when the defendant NYPD police officers suddenly and unlawfully entered the elderly woman's home and the defendant police officers subjected plaintiff to an unlawful frisk, search, and seizure. Thereafter, the defendant police officers unlawfully handcuffed plaintiff and subjected him to a false arrest and false imprisonment. Then, the defendant police officers proceeded to unlawfully strip search plaintiff at the 77th Precinct and plaintiff was maliciously prosecuted by the defendant police officers. Further, the defendant police officers subjected plaintiff to the abuse of process and denied plaintiff his Fifth and Fourteenth Amendment rights to due process and the right to a fair trial. Plaintiff was arraigned in Kings County Criminal Court

on December 28, 2012 at approximately 8:30 p.m. and released on his own recognizance from the courthouse at arraignment. Plaintiff was subjected to a malicious criminal prosecution that lasted approximately 1 ½ years during which time plaintiff was required to make approximately ten court appearances in Kings County Criminal Court. All criminal charges were dismissed in their entirety on June 10, 2014. The defendant police officers that did not personally violate plaintiff's Constitutional Rights, but witnessed their fellow officers engage in unlawful activity and violate plaintiff's rights under the United States Constitution and failed to stop their fellow officers from continuing to engage in such unlawful behavior are liable to plaintiff for their failure to intervene. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully frisked, searched, seized, confined, falsely arrested and falsely imprisoned, maliciously prosecuted, unlawfully strip searched subjected plaintiff to the abuse of process abused process, and denied plaintiff the right to due process and the right to a fair trial, in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff Daniel McGee is a resident of the state of New York.
3. Detective Warren Rohan, Shield No. 2378, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
4. Detective Warren Rohan, Shield No. 2378 is and was at all times relevant herein, assigned to the Narcotics Borough Brooklyn North command.
5. Detective Warren Rohan, Shield No. 2378, is being sued in his individual and official capacity.
6. Detective Steve LaFortune, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
7. Detective Steve LaFortune, is and was at all times relevant herein, assigned to the Narcotics Borough Brooklyn North command.
8. Detective Steve LaFortune is being sued in his individual and official capacity.
9. Detective Brian Chichotsky, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
10. Detective Brian Chichotsky, is and was at all times relevant herein, assigned to the Narcotics Borough Brooklyn North command.
11. Detective Brian Chichotsky is being sued in his individual and official capacity.

12. Detective James Ellerbee is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. Detective James Ellerbee is and was at all times relevant herein, assigned to the Narcotics Borough Brooklyn North command.

14. Detective James Ellerbee is being sued in his individual and official capacity.

15. Detective Rahman Waliur, Shield No. 6428, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

16. Detective Rahman Waliur, Shield No. 64288, is and was at all times relevant herein, assigned to the Narcotics Borough Brooklyn North command.

17. Detective Rahman Waliur, Shield No. 6428, is being sued in his individual and official capacity.

18. Lieutenant Lawrence Hammond is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

19. Lieutenant Lawrence Hammond is and was at all times relevant herein, assigned to the Narcotics Borough Brooklyn North command.

20. Lieutenant Lawrence Hammond is being sued in his individual and official capacity

21. New York City Police Officers John Does #1-4 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

22. Police Officers John Does #1-4 are being sued in their individual and official capacities.

23. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

24. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of

a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

25. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.

26. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

27. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

28. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

29. On or about December 27, 2012, plaintiff Daniel McGee, a forty-one (41) year old African American male visited the three-floor, single-family home of plaintiff's deceased father's girlfriend (Ms. Thomas), whom plaintiff knew for many years and viewed as a family member.

30. Ms. Thomas is an elderly woman and requires some assistance with certain activities. Ms. Thomas' home is located at 244 Saint Marks Avenue, Brooklyn, New York, and she rents most of the bedrooms in the home to tenants.

31. On December 27, 2012, plaintiff Daniel McGee ran a few errands for Ms. Thomas and then visited Ms. Thomas at her home located at 244 Saint Marks Avenue to provide her with company and to ensure Ms. Thomas was healthy and cared for.

32. While plaintiff was visiting Ms. Thomas he laid down on the couch in her living room and plaintiff fell asleep on the couch.

33. At approximately 11:00 a.m. on December 27, 2012 plaintiff was awoken from his sleep when a defendant NYPD police officer woke him by forcefully pulling him off the couch onto the floor.

34. Startled and lying on the floor, plaintiff was handcuffed , unlawfully seized, unlawfully frisked and searched, and placed under arrest, without probable cause or any legal justification to arrest plaintiff.

35. Unbeknownst to plaintiff, upon information and belief, some or all of the tenants that resided in Ms. Thomas's home were targets of a police investigation into the sale of controlled substances from that location.

36. At no time did the defendant police officers recover any illegal substance, contraband, weapons, or drugs from plaintiff's dominion, possession, custody, or control

37. Upon information and belief, prior to being awoken by the defendant police officer, the defendant police officers broke down the front door of Ms. Thomas' home while they were purportedly executing a search warrant at that location, related to alleged criminal conduct of Ms. Thomas' tenants who were located on different floors of the house from where plaintiff was sleeping.

38. Plaintiff was not a target or a subject of the search warrant and/or any investigation conducted of the premises by the defendant police officers.

39. In fact, the defendant police officers acknowledged in the police paperwork that the defendant officers' investigation into criminal conduct at that location provided them with absolutely no reason to believe plaintiff was in any way involved or engaged in criminal conduct at that location.

40. Plaintiff advised the defendant police officers that he did not live in the building and was just visiting Ms. Thomas. Further, plaintiff showed the defendant police officers his identification that contained his home address in order to verify for the officers that he did not live in that building.

41. In fact, the defendant police officers acknowledge that they were aware that plaintiff did not live at the location and was simply visiting the owner of the home..

42. The defendant police officers falsely arrested plaintiff without probable cause or any legal justification.

43. Additionally, the defendant police officers arrested seven (7) additional people present in the home at the time the search warrant was executed, whom upon information and belief were tenants in the house.

44. At no time did the police officers find drugs, weapons or illegal contraband in the possession, custody or control of plaintiff, nor did they have any reason to believe claimant committed a crime.

45. Regardless, the defendant police officers transported plaintiff to the 77th precinct against his will.

46. Plaintiff was unlawfully strip searched by the individually named defendant officers at the 77th Precinct even though the officers lacked reasonable suspicion, probable cause, or any legal justification to believe plaintiff was concealing illegal contraband under his clothing or inside of a body cavity.

47. Plaintiff was eventually transported to Kings County Central Booking.

48. Plaintiff was arraigned in Kings County Criminal Court on December 28, 2012 at approximately 8:30 p.m. at which time plaintiff was arraigned and a criminal prosecution was initiated against him by the defendant police officers, without probable cause, after defendants provided, false and fabricated evidence and information to the Kings County District Attorney's Office and in the accusatory instrument ("criminal court complaint") signed under penalty of perjury by defendant Detective Rohan.

49. At arraignment plaintiff was wrongfully and unlawfully charged with Criminal Possession of a Controlled Substance in the Seventh Degree (PL 220.03) and he was released from the Kings County Criminal Courthouse on his own recognizance. Claimant was wrongfully and unlawfully charged with criminal possession of a controlled substance even though the officers lacked any factual basis to accuse him of committing that crime.

50. Plaintiff was subjected to a malicious criminal prosecution that lasted approximately 1 ½ years during which time plaintiff was required to make approximately ten (10) court appearances in Kings County Criminal Court. All criminal charges were dismissed in their entirety on June 10, 2014.

51. Importantly, when the officers initially arrested plaintiff they did not accuse him of possessing or handling any of the illegal drugs, weapons, or contraband allegedly recovered during the execution of the search warrant.

52. In fact, the "Inventory made publically of property taken by" defendant Detective Warren Rohan, "under and pursuant to the" search warrant and filed in Kings County Supreme Court by defendant Detective Warren Rohan affirmatively indicates that defendants did not voucher or seize any illegal drugs, weapons or contraband from plaintiff.

53. Additionally, the official paperwork drafted and finalized by an Assistant District Attorney employed by the Kings County District Attorney's Office when defendants presented the District Attorney's Office with the case and with the evidence recovered by the defendant police officers when they executed the search warrant of the above-referenced premises, also affirmatively indicated that defendants did not voucher or seize any illegal drugs, weapons or contraband from plaintiff

54. There is an unconstitutional policy, practice, and/or custom performed by police officers employed by the NYPD wherein officers executing a search warrant in a home where illegal drugs, weapons, or contraband are recovered, arrest all occupants present in the home at the time of the execution of the search warrant, regardless of whether the illegal drugs, weapons, and/or contraband are recovered from the possession, custody, or control of each occupant and regardless of whether the officers possess probable cause to arrest all of the occupants of the home.

55. Upon information and belief, the NYPD trains its officers and/or permits its officers to engage in such unlawful and unconstitutional conduct and/or is deliberately indifferent to such unlawful conduct by its officers because it becomes easier to prosecute and

convict the individuals who actually possessed the illegal drugs, weapons or contraband if all occupants of a home are arrested. When one or several individuals of a home are not arrested after illegal contraband is found in a home, the individuals that were arrested can potentially blame possession of the controlled substance on the non-arrested individual(s), thus causing their criminal charges to be dismissed. To prevent such a scenario from occurring, NYPD officers have a policy, practice, and/or custom of arresting all occupants of a home when drugs, contraband or weapons are recovered during the execution of a search warrant.

56. Plaintiff was arrested without probable cause by the police officers. No drugs, weapons, or contraband were found in the possession, custody, or control of plaintiff at any time. At no time did plaintiff break any law, nor did the NYPD officers have reason to believe he committed a crime.

57. At no time prior to stopping plaintiff did the defendant police officers have any objective factual basis to believe plaintiff had committed a crime, was about to commit a crime, or was in the process of committing a crime.

58. The defendant police officers fabricated allegation that they observed plaintiff drop a crack rock onto the floor of the living room when the officers entered the home for the purpose of justifying why they arrested plaintiff to their supervisors and to attorneys employed by the Kings County District Attorneys Office.

59. Importantly, the collateral objective for why the defendant police officers fabricated allegations and evidence against plaintiff was to justify the arrest to their supervisors and the District Attorney's Office.

60. Based upon the false, misleading, and incomplete information provided to the District Attorney's Office by the defendant police officers and sworn to by the defendants in the criminal court complaint, defendants initiated a prosecution against plaintiff.

61. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unlawful and unconstitutional actions of their fellow police officers.

62. There is a policy, practice or custom within the New York City Police Department, wherein New York City Police Officers fabricate allegations against an individual, who is present in a home where illegal contraband is recovered from the possession, custody or control of another occupant of the home to justify arresting all occupants of the home.

63. As a result of defendant City of New York and the New York City Police Department's policy, practice, or custom of fabricating allegations against an individual to justify arresting all occupants of the home, even though the officers lack probable cause to arrest some of the home's occupants, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely engage in this misconduct and

unlawful behavior, there is a pattern, policy, custom or practice of New York City Police Officers engaging in this unlawful conduct.

64. Additionally, there is a policy, practice or custom within the New York City Police Department, wherein New York City Police Officers illegally strip search individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual secreted contraband, evidence, or has a weapon inside a body cavity as required by Sarnicola v. The County of Westchester, 01 Civ. 6078, 2002 U.S. Dist. LEXIS 20305 at *28-29 (S.D.N.Y. October 23, 2002).

65. New York City Police Officers have testified under oath that it is the policy, practice, and custom of the New York City Police Department to conduct strip searches of every person that is arrested. United States v. Gonzalez, 08 Cr 363 (BSJ), 2009 U.S. Dist. LEXIS 59742 at *7 (S.D.N.Y. March 2, 2009).

66. In fact, the Honorable Barbara S. Jones presiding in the Southern District of New York held that “there is a ‘[NYPD] departmental policy of strip searching all arrestees without making any assessment of particularized circumstances.’” Gonzalez, 2009 U.S. Dist. LEXIS 59742 at *20 (S.D.N.Y. March 2, 2009).

67. As a result of defendant City of New York and the New York City Police Department’s deliberate indifference about the fact that New York City Police Officers routinely conduct strip searches without reasonable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers strip searching individuals without a factual basis supporting a legal reason to do so.

68. Additionally, there is a policy, practice, or custom of deliberate indifference by the City of New York and the NYPD when NYPD officers engage in misconduct and/or unlawful or unconstitutional behavior and the NYPD and the City of New York have a policy, practice and/or custom of failing to train, improperly screen, supervise, and failure to discipline the NYPD officers. This policy was the direct and proximate cause of plaintiff’s injuries in this case. caused plaintiff’s

69. The City of New York and the NYPD were placed on notice repeatedly about the fact that the defendant police officers in this case repeatedly engaged in unlawful behavior, were improperly trained and/or did not understand the parameters of the Constitution and other laws, but the City and the NYPD were deliberately indifferent to the serious problems exhibited by the defendant police officers; therefore remedial measures were not taken by the City and the NYPD, causing the injuries to plaintiff in this case by allowing the officers behavior to continue.

70. For example, Detective Warren Rohan, the arresting officer in this case and apparently the officer in charge of the underlying investigation that led to the execution of the search warrant, causing plaintiff’s unlawful arrest, has repeatedly been the subject of unrelated complaints about his unlawful conduct, but the NYPD and the City have failed to address the numerous problems with Detective Warren Rohan, that were presented to the NYPD by members of the public. Specifically, in addition to other allegations, Detective Rohan has been

named as a defendant in at least thirteen (13) federal lawsuits accusing him of violating the Constitution of the United States , including but not limited to the false arrest and malicious prosecution of individuals. See Hall et al. v. City of New York et al., 10 CV 3087 (E.D.N.Y.); Marable v. City of New York et al., 09 CV 1859 (E.D.N.Y.); Brewster v. City of New York et al., 11 CV 4874 (E.D.N.Y.); Croney v. City of New York et al., 12 CV 251 (E.D.N.Y.); Booker v. City of New York et al., 12 CV 253 (E.D.N.Y.); Cornwell v. City of New York et al., 12 CV 255 (E.D.N.Y.); Deleon v. City of New York et al., 12 CV 257 (E.D.N.Y.); Foy v. The City of New York et al., 13 CV 1972 (E.D.N.Y.); Durant v. City of New York et al., 13 CV1973 (E.D.N.Y.); Lofton v. City of New York et al., 13 CV 5189 (E.D.N.Y.); Daniels v. Lallave, Shield #3824 et al., 13 CV 6510 (E.D.N.Y.); Cain v. The City of New York et al., 10 Civ. 529 (S.D.N.Y.); Lopez v. The City of New York et al., 12 Civ. 1408 (S.D.N.Y.).

71. In fact, defendant Detective Warren Rohan has received such a large number of complaints against him that the media has taken notice and there have been several articles written about how problematic Detective Rohan is and the affect his misconduct has on the public. Detective Rohan is reportedly one of the NYPD's most sued police officers. See Ben Yakas, NYPD Detective Has Been Sued 28 Times Since 2006, Cost The City Nearly \$1 Million, GOTHAMIST (Feb. 16, 2014); James Nye, NYPD cop dubbed 'PistolPete' claims dubious record for 'most sued officer' in the city as it is revealed more than \$1 billion in taxpayers money paid out in lawsuits over a decade, DAILYMAIL (Feb. 16, 2014); Ryan Sit, Meet the NYPD officers with the most lawsuits over the past decade, DAILY NEWS (Feb. 16, 2014); Selim Algar, City paying \$833k to wife of man who died in cop confrontation, N.Y. POST (June 5, 2014).

72. Moreover, several of the complaints and lawsuits filed against Detective Rohan were about his alleged misconduct during and after the execution of search warrants inside of individuals' homes and many allegations against Detective Rohan are similar to the allegations made by plaintiff in this case.

73. Some of the individually named police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable frisk, search, strip search, false arrest, false imprisonment, malicious prosecution, abuse of process and denial of the right to a fair trial against plaintiff

74. The unjustifiable frisk, search, strip search, false arrest, false imprisonment, malicious prosecution, abuse of process and denial of the right to a fair trial against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

75. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 74 with the same force and effect as if more fully set forth at length herein.

76. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully frisked, unlawfully searched, unlawfully strip searched, unlawfully seized, falsely arrested, falsely imprisoned, maliciously prosecuted, and subjected to abuse of process without probable cause in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

77. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 76 with the same force and effect as if more fully set forth at length herein.

78. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

79. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

80. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Frisk and Search

81. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 80 with the same force and effect as if more fully set forth at length herein.

82. The illegal approach, pursuit, stop and search of plaintiff, and underneath his clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

83. Defendants lacked reasonable suspicion or probable cause to search plaintiff.

84. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

85. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Strip Search

86. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 85 with the same force and effect as if more fully set forth at length herein.

87. Upon arriving at the 77th Precinct, defendants forced plaintiff to endure a humiliating and intrusive and unlawful strip search without an individualized reasonable suspicion that plaintiff was concealing illegal drugs, weapons or other contraband based upon the particular characteristics of the arrestee, and/or the circumstances of the arrest of plaintiff.

88. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

89. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Malicious Prosecution

90. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 89 with the same force and effect as if more fully set forth at length herein.

91. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

92. Defendants commenced and continued a criminal proceeding against plaintiff.

93. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

94. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

95. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

96. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

to Due Process and Denial of the Right to Fair Trial

97. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 96 with the same force and effect as if more fully set forth at length herein.

98. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the King's County District Attorney's Office.

99. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the King's County District Attorney's Office.

100. Defendants signed false and misleading criminal court complaint's and forwarded them to prosecutors in the King's County District Attorney's Office.

101. In withholding/creating false evidence against plaintiff Daniel McGee, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

102. As a result of the foregoing, plaintiff Daniel McGee sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

SEVENTH CAUSE OF ACTION

Malicious Abuse of Process

103. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 102 with the same force and effect as if more fully set forth at length herein

104. Defendants issued legal process to place plaintiff Daniel McGee under arrest.

105. Defendants arrested plaintiff Daniel McGee in order to obtain a collateral objective outside the legitimate ends of the legal process.

106. Defendants acted with intent to do harm to plaintiff Daniel McGee, without excuse or justification.

107. As a result of the foregoing, plaintiff Daniel McGee sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

EIGHTH CAUSE OF ACTION

Failure to Intervene

108. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 107 with the same force and effect as if more fully set forth at length herein.

109. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

110. Defendants failed to intervene to prevent the unlawful conduct described herein.

111. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

NINTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983

112. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 111 with the same force and effect as if more fully set forth at length herein.

113. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.

114. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department included, but were not limited to arresting all individuals present in a home where a search warrant is executed and contraband is recovered from a location in the home that is not within all individuals' possession custody or control, but the NYPD officers arrest all of the home's occupants, even without a specific, articulable factual basis supporting reasonable suspicion and/or probable cause to arrest some of the individuals that plaintiff and the officers fabricate allegations against some individuals to justify the arrest, as well as inadequate screening, hiring, retaining, training, and supervising its employees with respect to these issues.

115. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the violation of plaintiff's rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

116. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

117. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

118. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

TENTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983 for Policy of Unlawful Strip-Searching All Prisoners Arrested For A Drug Related Crime

119. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 118 with the same force and effect as if more fully set forth at length herein.

120. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.

121. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department included, but were not limited to, illegally strip searching individuals without a specific, articulable factual basis supporting a reasonable suspicion and probable cause to believe the individual secreted contraband, evidence, or has a weapon inside a body cavity as required by Sarnicola v. The County of Westchester, 01-CIV-6078, 2002 U.S. Dist. LEXIS 20305 at *28-29 (S.D.N.Y. Oct. 23, 2002), as well as inadequate screening, hiring, retaining, training, and supervising its employees with respect to this issue.

122. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the violation of plaintiff's rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

123. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

124. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

125. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff was unlawfully strip searched on two occasions at the 52nd Precinct by the individually named defendant police officers.

126. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

127. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Fourth Amendment to the Constitution of the United States.

128. The aforementioned customs, policies, usages, practices, procedures and rules devised, implemented, enforced, promoted, encouraged, and sanctioned by the City of Yonkers, including but not limited to : (a) the failure to adequately and properly screen, train, and supervise New York City Police Officers; (b) the failure to properly and adequately monitor and discipline New York City Police Officers; and (c) the overt and tactical encouragement and sanctioning of, and the failure to rectify, the New York City Police Departments suspicionless stops, seizures, questions, frisks, searches, and arrests, for trespass into a privately owned apartment building.

129. The City of New York has acted with deliberate indifference to the Fourth Amendment rights of plaintiff and other individuals. As a direct and proximate result of the acts and omissions of the City of Yonkers, plaintiff has been deprived of his rights under the Fourth and Fourteenth Amendments to the United States Constitution.

130. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

JURY DEMAND

131. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Daniel McGee demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
December 27, 2015

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
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New York, NY 10007
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ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
December 27, 2015

/s/
STUART E. JACOBS